



DECISION

Complaint No. : POS/4423/2025/F-67

Name and address of the complainant : Mr. Kashif Suleman, R/o Flat No. 304, Al-Sadiq Apartment, Opp. Marium Deewan Building, Near Pakala Masjid, Garden East, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **ALLEGED INACTION ON APPLICATION MADE TO SBCA AUTHORITIES FOR TAKING ACTION AGAINST DANGEROUS BUILDING ON PLOT NO. 18/BR-5, KHARADAR.**

THE COMPLAINT:

Mr. Kashif Suleman in his complaint dated 13.08.2025 stated that the building on plot No. BR-5/18-1D74, opposite Farooqi Masjid, Main Tower, Karachi is in dilapidated condition, structurally unsound, visibly cracked and poses a serious threat to both its occupants and the general public. Despite repeated complaints to various authorities no effective action has been taken. He therefore, solicited intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and the matter was taken up with the Director, District South, Sindh Building Control Authority, Karachi.

3. The Director, District South, SBCA appeared before the Investigating Officer on 08.01.2026 and stated that the matter is sub-judice before the High Court of Sindh at Karachi since 2023 which has been filed by the same complainant namely Mr. Muhammad Kashif s/o Suleman on the same subject-matter. The Director submitted report dated 01.01.2026 along-with copy of plaint of Suit No. 79/2023 (*Muhammad Kashif & another vs. Syed Faisal Ali Bukhari and 16 others including SBCA, Revenue, Police etc.*)

FINDINGS:

4. It is a settled legal proposition that a dispute / conflict / claim cannot proceed simultaneously in multiple forums. Currently, the dispute regarding plot No.18/BR-5, Kharadar, Karachi is sub-judice before the Civil Court in terms of suit filed by the same complainant before filing of complaint in this Institution.

5. As per Section 9(a) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) the jurisdiction of this Institution is barred in sub-judice matters.

DECISION:

6. In view of the above, the complaint is disposed of accordingly.

Given under my hand and seal of office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated 21st January, 2026